



CHAPTER 8.

An Act to revoke certain emergency provision as to licences to drive motor vehicles, and make provision with respect to the grant of such licences to persons who have held such licences under the emergency provision; and to amend the law as to the destination of fees in respect of driving tests. [18th February 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Paragraph (6) of Regulation seventy-two of the Defence (General) Regulations, 1939 (which regulates the granting of provisional licences during the continuance in force of that paragraph) is hereby revoked: Revocation of emergency provision as to provisional licences.

Provided that the revocation of the said paragraph shall not affect the operation or continuance in force of a provisional licence in force at the commencement of this Act.

2.—(1) Where a person has been the holder for any continuous period of twelve months elapsing before the commencement of this Act of a provisional licence granted on or after the eighteenth day of October, nineteen hundred and forty, and he has duly made an application for a licence within the twelve months beginning with the commencement of this Act, the provisions of the Road Traffic Act, 1930, and the Road Traffic Act, 1934, as to the grant of licences shall have effect as respects that application, and any subsequent application of his for a licence, as if he had passed the test of competence to drive prescribed for the purposes of section six of the Road Traffic Act, 1934: Rights of persons who have held provisional licences under emergency provision on subsequent applications for licences.

Provided that this subsection shall not apply to a person who has been convicted, in respect of any act or omission done

20 & 21 Geo. 5.
c. 43.
24 & 25 Geo. 5.
c. 50.

or occurring whilst he was the holder of a provisional licence granted as aforesaid, of—

- (a) manslaughter, or culpable homicide, in connection with the driving of a motor vehicle ;
- (b) causing any bodily harm to any person in connection with the driving of a motor vehicle ;
- (c) an offence under section eleven of the Road Traffic Act, 1930 (which relates to reckless or dangerous driving) ;
- (d) an offence under section twelve of that Act (which relates to careless driving) ; or
- (e) an offence under section fifteen of that Act (which relates to driving when under the influence of drink or drugs) ;

as respects any application made after the conviction.

(2) The preceding subsection shall apply only to the driving of vehicles of the class or description or classes or descriptions comprising such vehicle or vehicles as the person in question satisfies the licensing authority that he was in the habit of driving before the commencement of this Act whilst he was the holder of a provisional licence granted as aforesaid and in accordance with the terms of his provisional licence, and accordingly—

- (a) references in the preceding subsection to an application for a licence shall be construed as excluding references to an application for a licence which would authorise the applicant to drive vehicles of any other class or description ; and
- (b) a licence granted by virtue of the preceding subsection shall be limited to the driving of vehicles of that class or description or of those classes or descriptions, and that restriction shall be specified in the prescribed manner on the licence and the holder thereof shall be deemed not to be the holder of a licence to drive motor vehicles of any other class or description.

Amendment
as to
destination
of fees in
respect of
driving tests.

3.—(1) Fees in respect of tests of competence to drive for the purposes of section six of the Road Traffic Act, 1934, payable by virtue of regulations made under subsection (5) of that section shall be paid to such person as may be prescribed by regulations so made, and any such fees received by a person so prescribed (other than any as to which the regulations provide that they are to be paid to the person conducting the test and retained by him as remuneration) shall be paid into the Exchequer.

(2) In accordance with the preceding subsection the words “ to the person conducting the test ” in paragraph (b) of the said subsection (5) are hereby repealed.

4.—(1) This Act may be cited as the Road Traffic (Driving Short title, Licences) Act, 1947, and this Act and the Road Traffic Acts, 1930 construction to 1937, may be cited together as the Road Traffic Acts, 1930 to and extent. 1947.

(2) In this Act the expression "licence" means a licence to drive a motor vehicle granted under Part I of the Road Traffic Act, 1930, and this Act shall be construed as one with the said Part I and with Part I of the Road Traffic Act, 1934.

(3) This Act shall not extend to Northern Ireland.